

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JESUS OJEDA (TORRES),

Petitioner

VS.

MARIA LUCINA OJEDA,

Respondent

) Case Number: FDI-25-801588

) Hearing Date: September 3, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR SPOUSAL SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jesus Ojeda (Torres) and Respondent Maria Lucinda Ojeda. They share no minor children.
- 2) On 6/24/25, Petitioner filed a Petition for Dissolution indicating the date of marriage is 8/1/13 and date of separation is 1/18/25 for a marriage of 11 years and 5 months.
- 3) On 2/23/26, Respondent filed a Response and Request for Dissolution indicating the date of marriage is 8/1/13 and date of separation is 1/18/25 for a marriage of 11 years and 5 months.
- 4) On 7/10/26, Respondent filed a Request for Order seeking guideline temporary monthly spousal support. Respondent estimates Petitioner's income is \$7,160 per month based on Petitioner's 2023 tax return (attached as Exhibit 1).
- 5) On 7/16/26, Respondent filed an Income and Expense Declaration indicating she earns \$3,946 in average monthly income, pays \$48 in required monthly union dues, has \$200 in cash assets, and pays \$2,123 in average monthly expenses.

6) On 7/21/26, Respondent filed a Proof of Service by Mail indicating counsel for Petitioner was served the Request for Order on 7/1/26. The Court notes there is no indication that Respondent served her Income and Expense Declaration or a copy of the Tentative Ruling Instructions.

7) Petitioner did not file a Responsive Declaration.

8) The Court also notes that counsel for Petitioner filed a Notice of Unavailability of Counsel from 6/10/26 – 8/10/26.

B. Findings and Order

1) The Court finds good cause to **CONTINUE Respondent's Request for Order filed 7/10/26 to 10/27/26 at 9 AM in Dept. 403** to ensure proper service was effectuated as there is no indication that Respondent served her Income and Expense Declaration or a copy of the Tentative Ruling Instructions on Petitioner.

2) At least 16 Court days prior to the next hearing date, Respondent shall serve on Petitioner the (a) Request for Order, (b) Income and Expense Declaration, (c) Continuance Order contained herein, and (d) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure.

3) At least 9 Court days prior to the next hearing date, Petitioner may file and serve a Responsive Declaration and shall file and serve an Income and Expense Declaration (form FL-150), which is a mandatory form.

4) At least 5 Court days prior to the next hearing date, Respondent may file and serve a Reply Declaration.

5) Should Petitioner fail to file an Income and Expense Declaration (form FL-150) as ordered herein, the Court will use Respondent's estimation of Petitioner's monthly income (\$7,160 per month) to calculate guideline monthly spousal support, which Respondent presented to the Court under penalty of perjury.

6) The Court will prepare the Findings and Order After Hearing.